

Mithilesh Kumar Tiwari v. State of U.P.

Allahabad High Court · Division Bench · 30 May 2018 · Writ-C No. 20483 of 2018 · **Writ disposed; EE to decide billing dispute under clause 6.5.**

HEADNOTE

A writ seeking quash of a recovery citation for consumption charges alleged to have been levied during disconnection was disposed with liberty to approach the Executive Engineer, who shall treat the certified copy as a billing dispute under clause 6.5 of the U.P. Electricity Supply Code, 2005 and decide it within three weeks; recovery proceedings shall abide that order.

FACTUAL SUMMARY

Mithilesh Kumar Tiwari challenged a recovery citation dated 24 April 2017 for Rs.44,189 issued by the Uttar Pradesh electricity authorities. He alleged that consumption charges were being recovered even for a period when the respondents had disconnected his supply. The writ was heard by a Division Bench of the Allahabad High Court, with counsel for the petitioner, the licensee respondents, and the Standing Counsel for the State appearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute

HOLDING

A writ seeking quashing of a recovery citation for consumption charges alleged to have been levied during disconnection is disposed by relegating the consumer to the Executive Engineer, who shall treat the certified copy as a billing dispute and decide it under clause 6.5 of the U.P. Electricity Supply Code, 2005 within three weeks of presentation; recovery proceedings shall abide the Executive Engineer's order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CONSUMPTION CHARGES FOR THE DISCONNECTED PERIOD WERE ERRONEOUSLY BILLED AND RECOVERABLE UNDER THE CITATION DATED 24.04.2017

Left to the Executive Engineer to decide as a billing dispute under clause 6.5. ¶ 1